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Case Name: *Uzair, et al. v. Google LLC*

Case No.: 18CV328915

This is a class action rising from the automatic renewal of subscriptions for digital content through Defendant Google LLC's ("Google" or "Defendant") Google Play service.

Before the Court is Plaintiff Salvador De La O's motion for final approval and his motion for attorneys' fees, costs, and service awards, which is unopposed.¹ As discussed below, the Court GRANTS the motions.

I. BACKGROUND

A. Google Play

Google develops and operates Google Play as the official software application or "App" store for the Android operating system, allowing consumers to browse and download Android Apps published by both Google and third-party developers. (First Amended Complaint ("FAC"), ¶¶ 23–25.) Google uses Google Play to offer digital products (including, for example, songs, movies, television shows, and periodicals) through paid subscriptions that are automatically renewed at the end of a definite term for a subsequent term, or that continue until the consumer cancels. (FAC, ¶ 26.) Plaintiffs refer to subscriptions purchased through Google Play as "In-App Subscriptions."

To make purchases through Google Play, whether for Google's or third parties' applications, consumers use Google Play's payment system, formerly known as Google Wallets and currently called Google Payments. (FAC, ¶ 27.) For its own apps and for third-party apps, Google enrolls subscribers, processes payments, and delivers the In-App subscriptions. Third-party developers never receive subscribers' payment information. (FAC, ¶ 28.)

To subscribe, consumers must have a Google Account with a Google ID and password and are required to set up a Google Payments Account by providing their payment information. (FAC, ¶ 29.) During this process, consumers must state that they agree to the Google Play Terms of Service and the Google Payments Terms of Service ("Legal Agreements"), the current versions of which are attached to the FAC. (*Ibid.*) Consumers accept the Google Play Terms of Service when first using the Google Play Store App and when making a new purchase after the Terms have been updated. (FAC, ¶ 33.) Consumers do not agree to the Google Play Terms of Service prior to each and every purchase. (*Ibid.*) Rather, when Google Play offers consumers an In-App Subscription, small text at the bottom of the screen states: "By tapping 'subscribe,' you agree to the Terms of Service – Android (US)," with a hyperlink to the Google Payments Terms of Service. (*Ibid.*)

B. Plaintiffs' General Allegations

¹ Abdullah Uzair, Angel Chavez, and Nicolas Joel Luskin are also named Plaintiffs but they are not Class Representatives. The Court will refer to them collectively as "Plaintiffs."

Plaintiffs allege that Google’s “subscription flow,” including an initial pop up screen summarizing the subscription offer and an expanded summary that may also be viewed by the user, does not disclose that subscriptions will automatically renew until the consumer affirmatively acts to cancel the subscription and does not disclose that any cancellation is not effective until the end of the current billing period. This, in Plaintiffs’ view, violates Business & Professions Code sections 17600–17604, which govern automatic renewal and continuous service offers to consumers in California (the “Automatic Renewal Law” or “ARL”). (FAC, ¶¶ 37–43.)

In addition, Google’s subscription flow does not satisfy the ARL’s requirement of an affirmative consent to the agreement containing the automatic renewal offer terms, at least according to Plaintiffs. And while Google sends confirmation emails to customers, Google supposedly fails to provide an acknowledgement that includes the terms, cancellation policy, and information on how to cancel in a manner capable of being retained by the subscriber and that describes a timely, cost-effective, and easy-to-use mechanism for cancellation. (FAC, ¶¶ 50–53.) Finally, Plaintiffs allege that Google fails to allow subscribers to cancel before payment as required by the statute. (*Ibid.*)

Moreover, while these terms are disclosed in the Google Payments Terms of Service, they do not appear until consumers have scrolled through 29–30 screens of information within that document. (FAC, ¶ 44.) The terms consequently are not “clear and conspicuous” or in “visual proximity” to the subscription offer, as required by the ARL. (*Ibid.*)

Plaintiffs further allege that the Legal Agreements also violate the ARL in that they do not disclose: (1) the recurring charges that will be charged to the payment method information as part of the automatic renewal plan; (2) the length of the automatic renewal term or that the service is continuous where the length of the term is not chosen by the consumer; or (3) that there is a minimum purchase obligation. Moreover, according to Plaintiffs, whatever disclosures the Legal Agreement contain are not clear and conspicuous or in visual proximity to the subscription offer. (FAC, ¶¶ 47–49.)

C. Named Plaintiffs’ Specific Allegations

Plaintiff Abdullah Uzair resides in California and purchased a family plan subscription to Google Play Music from defendant on March 16, 2016. (FAC, ¶ 9.)

Because Defendant failed to clearly and conspicuously disclose the automatic renewal offer terms in visual proximity to the request for Plaintiff’s consent to the offer, Plaintiff was not informed prior to purchase that the subscription would renew automatically until cancelled or that any cancellation would not be effective until the next period. Had Defendant made these disclosures, Plaintiff would not have subscribed to Google Play Music at the time he did so.

(*Ibid.*) Since March 16, 2016, Google has continued to charge Mr. Uzair \$14.99 per month on a recurring basis for this Google Play Music subscription. (*Ibid.*) Three other plaintiffs—Angel Chavez, Nicholas Joel Luskin, and Salvador De La O—signed up for free trials to services offered by Google that they would not have subscribed to had Google disclosed that the subscription would renew automatically until cancelled and that any cancellation would not be effective until the next period. (FAC, ¶¶ 10–12.)

Based on the foregoing, Plaintiff Uzair initiated this action on May 30, 2018, with the filing of the Complaint, which asserted the following causes of action: (1) violation of Automatic Renewal Law (Bus. & Prof. Code §§ 17600-17604); (2) UCL violations (Bus. & Prof. Code §§ 17200-17204); (3) injunctive relief and restitution (Bus. & Prof. Code § 17535); (4) violation of Consumer Legal Remedies Act (Civ. Code §§ 1750, *et seq.*); (5) common count for money had and received; and (6) declaratory relief (Code Civ. Proc., § 1060).

Plaintiff De La O now seek an order: granting final approval of the parties settlement agreement (the “Settlement”); approving administration costs to settlement administrator Verita Global (“Verita”); authorizing the payment of any additional Court-approved settlement administration expenses from residual funds; and entering judgment.

II. MOTION FOR FINAL APPROVAL

A. LEGAL STANDARD FOR SETTLEMENT APPROVAL

Generally, “questions whether a [class action] settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court’s broad discretion.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234–235 (*Wershba*), disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.)

In determining whether a class settlement is fair, adequate and reasonable, the trial court should consider relevant factors, such as the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement.

(*Wershba, supra*, 91 Cal.App.4th at pp. 244–245, internal citations and quotations omitted.)

In general, the most important factor is the strength of the plaintiffs’ case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130 (*Kullar*).) But the trial court is free to engage in a balancing and weighing of relevant factors, depending on the circumstances of each case. (*Wershba, supra*, 91 Cal.App.4th at p. 245.) The trial court must examine the “proposed settlement agreement to the extent necessary to reach a reasoned judgment that the agreement is not the product of fraud or overreaching by, or collusion between, the negotiating parties, and that the settlement, taken as a whole, is fair, reasonable and adequate to all concerned.” (*Ibid.*, citation and internal quotation marks omitted.) The trial court also must independently confirm that “the consideration being received for the release of the class members’ claims is reasonable in light of the strengths and weaknesses of the claims and the risks of the particular litigation.” (*Kullar, supra*, 168 Cal.App.4th at p. 129.) Of course, before performing its analysis the trial court must be “provided with basic information about the nature and magnitude of the claims in question and the basis for concluding that the consideration being paid for the release of those claims represents a reasonable compromise.” (*Id.* at pp. 130, 133.)

B. Settlement Class

Plaintiffs request certification of the following Class for settlement purposes.

All persons in California who paid for at least one renewal term of a Google subscription through a Google Play checkout screen (or “Buy Cart”) billed through Google Play billing from May 30, 2014 to October 27, 2019 for personal, family, or household purposes, excluding subscriptions for Google Drive, subscriptions that were cancelled during a free trial, and subscriptions that were fully refunded by Google.

Rule 3.769(d) of the California Rules of Court states that “[t]he court may make an order approving or denying certification of a provisional settlement class after [a] preliminary settlement hearing.” California Code of Civil Procedure Section 382 authorizes certification of a class “when the question is one of a common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court”

Section 382 requires the plaintiff to demonstrate by a preponderance of the evidence: (1) an ascertainable class and (2) a well-defined community of interest among the class members. (*Sav-On Drug Stores, Inc. v. Superior Court* (2004) 34 Cal.4th 319, 326, 332 (*Sav-On Drug Stores*).) “Other relevant considerations include the probability that each class member will come forward ultimately to prove his or her separate claim to a portion of the total recovery and whether the class approach would actually serve to deter and redress alleged wrongdoing.” (*Linder v. Thrifty Oil Co.* (2000) 23 Cal.4th 429, 435.) The plaintiff has the burden of establishing that class treatment will yield “substantial benefits” to both “the litigants and to the court.” (*Blue Chip Stamps v. Superior Court* (1976) 18 Cal.3d 381, 385.)

In the settlement context, “the court’s evaluation of the certification issues is somewhat different from its consideration of certification issues when the class action has not yet settled.” (*Luckey v. Superior Court* (2014) 228 Cal.App.4th 81, 93.) As no trial is anticipated in the settlement-only context, the case management issues inherent in the ascertainable class determination need not be confronted, and the court’s review is more lenient in this respect. (*Id.* at pp. 93–94.) But considerations designed to protect absentees by blocking unwarranted or overbroad class definitions require heightened scrutiny in the settlement-only class context, since the court will lack the usual opportunity to adjust the class as proceedings unfold. (*Id.* at p. 94.)

At preliminary approval, the Court provisionally certified the above-described Class, and it does not find any reasons to depart from that ruling at this time. Consequently, the Court will certify the Class for settlement purposes as requested.

C. Terms and Administration of Settlement

The non-reversionary gross settlement amount is \$5,000,000. Attorneys’ fees in the amount of \$2,250,000 and litigation costs of up to \$180,000, and administrative costs of up to \$75,000.

The net settlement amount-estimated to be \$2,502,437.03-will be allocated to Class members. The average individual payment will be \$5.53.² After 195 days, “undeliverable” funds will be transmitted to the Justice Gap Fund. Plaintiff De La O will seek a service award of up to \$5,000 and Plaintiff Chavez will seek a service award of up to \$2,500.

In exchange for settlement, Class Members who do not opt out will release:

[A]ll manner of claims arising during the Class Period (a) as they were alleged in the complaints, including those based on alleged violations of the Automatic Renewal Law, Unfair Competition Law, Consumer Legal Remedies Act, money had and received, and declaratory and injunctive relief, or (b) that arise from the factual allegations in the operative First Amended Complaint.

The notice period has now been completed. Omar Silva (“Silva”), a senior project manager with Verita, submitted a declaration in support of the instant motion. On February 6, 2026, Verita received the Class list from defense counsel. On March 10, 2026, Verita sent the email notice to 417,973 Class Members and it was successfully delivered to 415,694. There were 2,279 email notices that were returned as undeliverable. Verita identified 36,248 Class Members whose original email addresses had either been invalid or from which the email notices had returned as undeliverable. It found updated email addresses for 16,625 Class Members and accordingly sent email notices on March 26, 2026. 11,568 were successfully delivered and 5,057 were returned as undeliverable. As of June 4, 2026, 427,262 email notices were successfully delivered. Thus, the notice efforts reached approximately 94.52% of the identified settlement Class.

On February 6, 2026, Verita established the Settlement Website dedicated to this matter. As of May 29, 2026, it received 61,670 visits. The Settlement Email Address received and responded to 560 inquiries. On March 9, 2026, Verita established a toll-free telephone number, which it continues to maintain. As of May 29, 2026, Verita received 148 calls.

The deadline to response was May 9, 2026. As of the date of Silva’s declaration, Verita received 25 requests for exclusion; and 8 objections. With regard to the objections, the names and email addresses for 5 submitters did not match the information in the Class list. As to the remaining 3 submitters, the names matched but the email addresses did not, thus, Verita sought more information from the submitters. However, after taking efforts to seek matching email addresses, Verita could not confirm that the submitters were Class Members. Thus, Verita states it has not received any valid objections to the Settlement.

Plaintiffs’ request for \$75,000 in administration costs is supported by Silva’s declaration. The amount is reasonable for Verita’s efforts in this action. Thus, the request is approved.

At the preliminary approval, the Court found that the proposed settlement provides a fair and reasonable compromise to Plaintiffs’ claims. It finds no reason to depart from these

² The Settlement does not require a claims process, instead each participating Class Member shall automatically receive their pro rata share of the net settlement fund.

findings now, especially considering that there are no objections. Therefore, the Court finds that the Settlement is fair and reasonable for the purposes of final approval.

III. MOTION FOR ATTORNEYS' FEES, LITIGATION COSTS, AND PLAINTIFFS' SERVICE AWARD

Class Counsel seeks a fee award of \$2,250,000. Class Counsel provides a lodestar figure of \$4,935,659.50, based on 6,061.60 hours of work at billing rates ranging from \$250 to \$1,275 per hour, resulting in a negative multiplier of 0.45. This is below the range of multipliers that courts typically approve. (See *Wershba*, *supra*, 91 Cal.App.4th at p. 255 [“[m]ultipliers can range from 2 to 4 or even higher”]; *Vizcaino v. Microsoft Corp.* (9th Cir. 2002) 290 F.3d 1043, 1051, fn. 6 [stating that multipliers ranging from one to four are typical in common fund cases and citing the court’s own survey of large settlements funding a range of 0.6-19.6, with most (20 to 24, or 83%) from 1.0-4.0 and a bare majority (13 of 24, or 54%) in the 1.5-3.0 range”].)

“While the percentage method has been generally approved in common fund cases, courts have sought to ensure the percentage fee is reasonable by refining the choice of a percentage or by checking the percentage result against the lodestar-multiplier calculation.” (*Laffitte v. Robert Half Intern, Inc.* (2016) 1 Cal.5th 480, 495 (*Laffitte*).) Applying the latter approach,

[T]he percentage-based fee will typically be larger than the lodestar based fee. Assuming that one expects rough parity between the results of the percentage method and the lodestar method, the difference between the two computed fees will be attributable solely to a multiplier that has yet to be applied. Stated another way, the ratio of the percentage-based fee to the lodestar-based fee implies a multiplier, and that implied multiplier can be evaluated for reasonableness. If the implied multiplier is reasonable, then the cross-check confirms the reasonableness of the percentage-based fee; if the implied multiplier is unreasonable, the court should revisit its assumptions. (*Laffitte*, *supra*, 1 Cal.5th at p. 496, quoting Walker & Horwich, *The Ethical Imperative of a Lodestar Cross-check: Judicial Misgivings About “Reasonable Percentage” Fees in Common Fund Cases* (2005) 18 Geo. J. Legal Ethics 1453, 1463.) As described by the California Supreme Court, “[i]f the multiplier calculated by means of a lodestar crosscheck is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Laffitte*, *supra*, 1 Cal.5th at 505.)

While the amount requested constitutes a higher percentage of the gross settlement amount than the Court usually awards, the Court finds the award is justified based on the length of the litigation, the amount of time spent on this action, and the results achieved. Moreover, the multiplier sought by Class Counsel is well below the range typically awarded by California courts and it is supported by the percentage cross-check and Class Counsel’s declarations. Thus, the Court finds Class Counsel’s requested fee award is reasonable.

Class Counsel also seeks \$165,062.97 in litigation costs, which is below the \$180,000 allowed for in the Settlement. The request is supported by Class Counsel’s declarations. This amount is reasonable and thus, it is approved.

Plaintiff De La O requests a service award of \$5,000 and Plaintiff Chavez requests a service award of \$2,500.

The rationale for making enhancement or incentive awards to named plaintiffs is that they should be compensated for the expense or risk they have incurred in conferring a benefit on other members of the class. An incentive award is appropriate if it is necessary to induce an individual to participate in the suit. Criteria courts may consider in determining whether to make an incentive award include: 1) the risk to the class representative in commencing suit, both financial and otherwise; 2) the notoriety and personal difficulties encountered by the class representative; 3) the amount of time and effort spent by the class representative; 4) the duration of the litigation and; 5) the personal benefit (or lack thereof) enjoyed by the class representative as a result of the litigation. These “incentive awards” to class representatives must not be disproportionate to the amount of time and energy expended in pursuit of the lawsuit.

(*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1394-1395, internal punctuation and citations omitted.) Incentive awards are particularly appropriate where a plaintiff undertakes a significant reputational risk in bringing an action against an employer. (*Covillo v. Specialty’s Café* (N.D. Cal. 2014) 2014 U.S.Dist.LEXIS 29837, at *29.)

At preliminary approval, the Court concluded that Plaintiffs were entitled to their respective service awards. The Court sees no reason to depart from that ruling at this time. Thus, Plaintiffs’ requests for their respective service awards are approved.

IV. CONCLUSION

In accordance with the above, IT IS HEREBY ORDERED, ADJUDGED, AND DECREED THAT:

Plaintiffs’ motion for final approval is GRANTED. The following Class is certified for settlement purposes only:

All persons in California who paid for at least one renewal term of a Google subscription through a Google Play checkout screen (or “Buy Cart”) billed through Google Play billing from May 30, 2014 to October 27, 2019 for personal, family, or household purposes, excluding subscriptions for Google Drive, subscriptions that were cancelled during a free trial, and subscriptions that were fully refunded by Google.

Judgment will be entered through the filing of this order and judgment. (Code Civ. Proc., § 668.5.) Plaintiff and the members of the Class will take from the operative complaint only the relief set forth in the settlement agreement and this order and judgment. Pursuant to Rule 3.769(h) of the California Rules of Court, the Court will retain jurisdiction over the parties to enforce the terms of the settlement agreement and the final order and judgment.

The Court sets a compliance hearing for **April 1, 2027 at 2:30 P.M.** in Department 22. At least ten court days before the hearing, class counsel and the settlement administrator shall submit a summary accounting of the net settlement fund identifying distributions made as ordered herein; the number and value of any uncashed checks; amounts remitted pursuant to Code of Civil Procedure section 384, subdivision (b); the status of any unresolved issues; and any other matters appropriate to bring to the Court’s attention. Counsel shall also submit an

amended judgment as described in Code of Civil Procedure section 384, subdivision (b). Counsel may appear at the compliance hearing remotely.

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Case Name: *Leedeman v. Midland Credit Management, Inc.*

Case No.: 19CV254554

This is a class action alleging unlawful debt collection practices by defendant Midland Credit Management, Inc. (“MCM” or “Defendant”) in connection with consumer credit accounts.

Before the Court is (1) the parties’ joint motion for final approval; and (2) Plaintiff Peggy Irene Leedeman’s motion for attorneys’ fees, costs, and a service award, which is unopposed. As discussed below, the Court GRANTS the parties’ motion for final approval; and GRANTS Plaintiff’s motion for attorneys’ fees, costs, and a service award.

V. BACKGROUND

According to the allegations of the operative first amended complaint (“FAC”), Plaintiff incurred a financial obligation in the form of a consumer credit account issued by Capital One Bank (USA) N.A. (“Capital One”). (FAC, ¶ 12.) Plaintiff denies she owes any debt on this account. (*Ibid.*) On or about March 15, 2019, Capital One sold the alleged debt to MCM for collection. (FAC, ¶ 14.)

MCM sent Plaintiff an initial collection letter on April 10, 2019, which included an insert. (FAC, ¶¶ 16-19.) She alleges that the insert violated Civil Code section 1788.52, subdivision (d)(1), because it failed to provide the true name of the debt buyer and was printed in less than 12-point type. (FAC, ¶ 20.) These alleged violations are part of MCM’s standard policy when sending initial collection communications. (FAC, ¶ 23.) Leedeman brings this class action on behalf of herself and other consumers who received such communications from MCM, in connection with debt originally owed to Capital One. (FAC, ¶¶ 24-26.)

Based on the foregoing allegations, Plaintiff initiated this action with the filing of the complaint asserting a single cause of action under the California Fair Debt Buying Practices Act (“CFDBPA”), Civil Code sections 1788.50-1788.64. On February 25, 2021, Plaintiff filed her FAC, which asserts the same claim. On January 24, 2026, the Court issued its order, which granted the parties’ motion for preliminary approval.

The parties now seek final approval of the Settlement.

VI. MOTION FOR FINAL APPROVAL

D. LEGAL STANDARDS FOR SETTLEMENT APPROVAL

1. Class Action

Generally, “questions whether a [class action] settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court’s broad discretion.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234–235)